

OREGON STATE HOSPITAL

POLICY

SECTION 8: Safety, Security, Emergency Management **POLICY: 8.004**

SUBJECT: Criminal Offender Information Access

POINT PERSON: Chief Financial Officer/Chief Operations Officer

APPROVED: Dolores Matteucci **DATE: MAY 30, 2023**
Superintendent

SELECT ONE: ☐ New policy ☒ Minor/technical revision of existing policy
☐ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. This policy establishes Oregon State Hospital (OSH) parameters for access to criminal history information.
- B. This policy applies to all staff.

II. POLICY

- A. OSH requires access to criminal history information to perform its designated functions, including:
 - 1. Providing secure evaluation and treatment plans, services, and setting for persons committed to Oregon Health Authority (OHA);
 - 2. Consulting with the courts in commitment proceedings in assessing a person's dangerousness before the court's decision;
 - 3. Reporting and clearing of patients on unauthorized leave from OSH;
 - 4. Screening of visitors to patients; and
 - 5. Screening applicants for employment, transfer, promotion, volunteer services, or internship, and contract employees who may have direct contact with patients or adults in custody.
- B. OSH restricts use of criminal offender information in accordance with set guidelines. Information received from the Oregon State Police, including Law Enforcement Data System (LEDS) reports, may not be used for any purpose

other than that for which it is obtained and may not be disseminated to unauthorized persons or agencies.

1. In the event that patient criminal offender information is requested, staff must adhere to OSH's policies and procedures regarding release of information.
 2. LEDS reports obtained for the purposes stated in this policy may not be released from OSH.
 3. LEDS reports or documents containing LEDS information must be maintained in secure files until destroyed and must be treated in a manner that does not permit use in later proceedings.
 4. LEDS reports may not be printed or stored outside the designated LEDS folder.
 5. LEDS reports may not be included in patient files, including the medical record.
 6. LEDS reports shall be deleted from the LEDS folder after three months.
- C. A request for patient criminal offender information may be made and viewed only by Criminal Justice Information System (CJIS)-cleared staff involved in diagnosis, evaluation, or treatment of:
1. A person currently receiving care and treatment at OSH; or
 2. A person committed or who is being considered for commitment as a patient.
- D. The Admissions Office and Forensic Evaluation Services shall complete a request for LEDS before each patient admission.
- E. Criminal history information for employment, volunteering, or internship may be used only as a reference to identify the source of original records or in direct discussion with a subject individual with the Office of Human Resources.
- F. Criminal offender information relating to a subject individual for employment or a current staff shall be processed in accordance with OSH policy 5.021, "Background Checks for Staff," and applicable rules.
1. The applicant must sign a consent authorizing the criminal offender information check.
 2. A refusal to sign a consent form for a criminal records review or a false swearing to an arrest or non-conviction of a crime may be cause to deny employment, volunteer position, or internship.

- 3. Further checks may be made when the Superintendent or Human Resources Manager determines such review is necessary.
- G. Any staff must notify the office of Human Resources (HR) manager within five days upon being arrested, charged, or convicted for any crime per OAR 407-007-0020. Conviction of a crime may be cause for termination of employment, volunteer position, internship, or contractor status.
- H. LEDS requests shall be addressed in a timely manner per Procedures A.
- I. Staff performing designated functions for OSH must complete CJIS security training before accessing LEDS reports and must re-certify every two years for continued access.
- A. State Hospital (OSH) follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- B. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Adult(s) in custody" is as defined in OSH policy 5.016, "Adults in Custody Workforce." Adult in custody in this policy means any person working at OSH through the Adult in Custody Work Program under the supervision of the Department of Corrections (DOC) and who is not on parole, post-prison supervision, or probation status. Adults in custody in this policy does not refer to Oregon State Hospital patients.
- B. "Criminal offender information" includes records of arrests and the nature and disposition of criminal charges, including sentencing, confinement, and release. For the purposes of this policy, criminal offender information means information obtained from LEDS reports.
- C. "Law Enforcement Data System (LEDS)" refers to a system that contains statewide criminal offender information.
- D. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).
- E. "Subject individual" has the same meaning as the definition in OAR 407-007-0010.

IV. PROCEDURES

Procedures A Law Enforcement Data Systems (LEDS) Requests

V. ATTACHMENTS

VI. RELATED OSH POLICIES AND PROTOCOLS

2.006 Public Records Retention and Destruction

2.008 Privacy and Security of Patient Information

2.018 Complete Medical Record

5.003 Driver License Record and Vehicle Registration Access

5.008 Equal Opportunity Employment or Non-Discrimination

5.016 Adults in Custody Workforce

5.018 Volunteers

5.021 Background Checks for Staff

6.021 Release of Information, Communication with Family, Others

6.045 Clinical Documentation

7.014 Medical Records Patient Requests

8.018 Unauthorized Leave

8.026 Visitors to Patients

9.010 Interns

VII. REFERENCES

Department of Human Services. Criminal history checks, 060-010. Author.

Department of Human Services. Background checks procedure on non-institution DHS employees, 060-010-01. Author.

Department of Human Services. Background checks procedure on institution DHS employees, 060-010-02. Author.

Department of Human Services. Reporting of new criminal or abuse activity procedure, 060-010-03. Author.

Department of Human Services. Background checks procedure on volunteers, 060-010-04. Author.

Oregon Administrative Rule, §§257-010-0010 — 257-010-0060.

Oregon Administrative Rule §309-106-010.

Oregon Administrative Rule §§407-007-0000 — 407-007-0460.

Oregon Administrative Rule §943-007-0001.

Oregon Revised Statute §161.370.

Oregon Revised Statute §161.327.

Oregon Revised Statute §§181.010 — 181.540.

Oregon Revised Statute §426.095.

US Department of Justice, *Criminal Justice Information Services (CJIS) Security Policy Version 5.6.*